



**Order under Section 21.2 of the
Statutory Powers Procedure Act and the
Residential Tenancies Act, 2006**

Citation: 375 Melvin Inc. v Doshi, 2025 ONLTB 94379

Date: 2025-12-10 **File Number:**
LTB-L-101836-24-RV

In the matter of: 20, 375 MELVIN AVE
HAMILTON ON L8H2K6

Between:	375 Melvin Inc.	Landlord
	And	
	Varun Doshi	Tenant

Review Order

375 Melvin Inc. (the 'Landlord') applied for an order to terminate the tenancy and evict Varun Doshi (the 'Tenant') because the Tenant did not pay the rent that the Tenant owes.

This application was resolved by order LTB-L-101836-24 issued on April 2, 2025.

On November 6, 2025, the Tenant requested a review of the order and that the order be stayed until the request to review the order is resolved.

On November 7, 2025, interim order LTB-L-101836-24-RV-IN was issued, staying the order issued on April 2, 2025.

The review request was heard by videoconference on December 1, 2025.

The Landlord's Agent Darren Fink and the Tenant Varun Doshi attended the hearing.

Determinations:

Review Request

1. Application LTB-L-101836-24 was heard by videoconference on March 25, 2025. The Tenant did not attend. Based on the uncontested evidence of the Landlord, the Board confirmed the termination of the tenancy and ordered the Tenant to pay rent arrears.
2. The Tenant testified that he did not attend the hearing as he did not receive the Notice of Hearing. The Tenant vacated the rental unit on December 30, 2024, and was not aware that an application had been filed against him at the time. The Tenant only discovered that a hearing had taken place, and an order issued on November 6, 2025, when he was contacted by a collections agency.
3. The Landlord's Agent submitted that the Tenant was served properly by the Board and confirmed that the Landlord did not serve the Notice of Hearing themselves.
4. The Board's records show that the Tenant was mailed the Notice of Hearing on January 13, 2025, after he had vacated the rental unit.
5. I am satisfied that the Tenant did not receive the Notice of Hearing and was therefore not reasonably able to participate in the hearing held on March 25, 2025.
6. The Tenant's request to review the order is granted. The Landlord's application was heard *de novo* at the December 1, 2025, hearing.

L1 Application

7. The Landlord served the Tenant with a valid Notice to End Tenancy Early for Non-payment of Rent (N4 Notice). The Tenant did not void the notice by paying the amount of rent arrears owing by the termination date in the N4 Notice or before the date the application was filed.
8. The Tenant was in possession of the rental unit on the date the application was filed.
9. The Tenant vacated the rental unit on December 30, 2024. Rent arrears are calculated up to the date the Tenant vacated the unit
10. The lawful rent is \$1,650.00. It was due on the 1st day of each month.
11. The Tenant has not made any payments since the application was filed.
12. The rent arrears owing to December 30, 2024, are \$3,277.50.
13. The Landlord incurred costs of \$186.00 for filing the application and is entitled to reimbursement of those costs.

14. The Landlord collected a rent deposit of \$1,650.00 from the Tenant and this deposit is still being held by the Landlord. The rent deposit is applied to the arrears of rent because the tenancy terminated.
15. Interest on the rent deposit, in the amount of \$43.28 is owing to the Tenant for the period from December 13, 2023, to December 30, 2024.

Section 82 Issues

16. The Tenant first disclosed the issues he intended to raise on November 16, 2025. Therefore, the one-year limitation period runs to November 16, 2024. The remedies ordered are limited to the period of November 16, 2024, to December 30, 2024.
17. The Tenant raised two issues under section 82 of the *Residential Tenancies Act* (2006) (the 'Act'): bedbugs and lighting. The Tenant testified that he resided at the rental unit starting February 1, 2024, and that his wife joined him in September 2024. They travelled out of the country from November 15, 2024, to December 23, 2024, at which point they returned to the unit, found the issues unresolved and decided to move out.
18. The Tenant testified that there were bedbugs in the unit from the beginning of the tenancy. He first reported it to the Landlord's property manager on January 15, 2024. The Landlord made efforts to resolve the issue in the first six months, sending a pest control technician 4-5 times. However, later in the year, the management changed, and the Landlord stopped responding. The issue remained unresolved until the end of the tenancy. The Tenant was not significantly affected by the bedbugs, however his wife got bitten multiple times. The Tenant notified the Landlord of the issue again on October 18, 2024.
19. The Landlord's Agent testified that, to the Landlord's knowledge, the bedbug issue had been resolved in the summer of 2024. The Agent submitted that the issue only re-started in October 2024. The Agent testified that the Landlord was prepared to work with the Tenant to resolve the issue but needed him to be in the unit to prepare it for treatment.
20. I am satisfied that the Landlord breached their maintenance obligations under section 20(1) of the Act, as the Tenant informed the Landlord of the bedbug issue on October 18, 2024, and it remained unresolved until December 30, 2024. However, as the Tenant and his wife were away from November 15 to December 23, 2024, and were not affected by the state of the unit during this time, I find it appropriate to award a rent abatement only for the period of December 23 to December 30, 2024. I find a lump sum rent abatement of \$100.00 to be appropriate given the circumstances.
21. The Tenant testified that the lights in the common areas of the residential complex, including the laundry room and stairwells, were broken for several weeks. This lowered the visibility in the common areas and made it difficult to walk safely without a light. The Tenant stated that the issue started in mid-October, and he immediately notified the Landlord. However, the Landlord closed the Tenant's requests without conducting repairs. The Tenant could not recall if the issue persisted when he returned to Canada.

22. The Landlord's Agent testified that the lighting issue was fully resolved by mid-November 2024.
23. Given that the issue was resolved before the Tenant returned from his travels, and he was not affected by it while he was away, I do not find it appropriate to grant any rent abatement for this issue.
24. The Tenant is entitled to a rent abatement of \$100.00. This amount will be deducted from the amount owing to the Landlord.

It is ordered that:

1. The request to review order LTB-L-101836-24 issued on April 2, 2025, is granted. The order is cancelled and replaced with the following.
2. The interim order issued on November 7, 2025, is cancelled.
3. The tenancy between the Landlord and the Tenant is terminated as of December 30, 2024, the date the Tenant moved out of the rental unit.
4. The Tenant shall pay to the Landlord \$1,670.22. This amount includes rent arrears owing up to the date the Tenant moved out of the rental unit and the cost of filing the application. The rent deposit and interest the Landlord owes on the rent deposit is deducted from the amount owing by the Tenant. See Schedule 1 for the calculation of the amount owing.
5. If the Tenant does not pay the Landlord the full amount owing on or before December 21, 2025, the Tenant will start to owe interest. This will be simple interest calculated from December 22, 2025, at 4.00% annually on the balance outstanding.

December 10, 2025
Date Issued

Kate Sinipostolova
Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor Toronto
ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.

Schedule 1 SUMMARY OF CALCULATIONS

A. Amount the Tenant must pay as the tenancy is terminated

Rent Owing To Move Out Date	\$3,277.50
Application Filing Fee	\$186.00
Less the rent abatement ordered under section 82 of the Act	-\$100.00
Less the amount of the last month's rent deposit	- \$1,650.00
Less the amount of the interest on the last month's rent deposit	- \$43.28
Total amount owing to the Landlord	\$1,670.22